

Data Processing Agreement

Pursuant to Article 28 of the General Data Protection Regulation (EU) 2016/679

DRAFT — PENDING LEGAL REVIEW. NOT FOR SIGNATURE.

1. Parties

This Data Processing Agreement ("DPA") is entered into between:

Data Controller ("Controller"):

Organization: _____

Address: _____

Contact person: _____

Email: _____

Data Processor ("Processor"):

Mapsury, operated by Artem Konuchov

Email: konuchovartem@mapsury.org

2. Subject Matter and Duration

The Processor processes personal data on behalf of the Controller in connection with the provision of the Mapsury platform — an open-source geospatial survey tool that enables the Controller to create, distribute, and analyze map-based surveys.

This DPA shall remain in effect for the duration of the Controller's use of the Mapsury platform and shall automatically terminate upon deletion of the Controller's account and all associated data.

This DPA governs the **hosted service operated by the Processor at mapsury.org**. Where the Controller self-hosts Mapsury on its own infrastructure, the Processor processes no personal data on the Controller's behalf and this DPA does not apply.

3. Nature and Purpose of Processing

The Processor processes data solely for the purpose of:

- Hosting and storing surveys created by the Controller
- Collecting and storing survey responses submitted by respondents
- Providing data export functionality (GeoJSON, CSV)
- Maintaining user accounts for the Controller's authorized personnel

- Providing the Controller with aggregate response and traffic reports for its own surveys

4. Types of Personal Data

Category	Data Elements	Data Subjects
Account data	Email address, username, hashed password	Survey creators (Controller's staff)
Survey responses	Text answers, numeric values, geographic coordinates (points, lines, polygons), uploaded images	Survey respondents
Technical data	Non-persistent session identifier; browser user-agent string; the referring page and any UTM campaign parameters present in the link the respondent followed. No IP addresses are stored with survey responses.	Survey respondents
Security and audit data	IP address, recorded when a registration attempt triggers an anti-abuse defense, and for administrative actions in the audit log. Not linked to survey responses.	Survey creators and registration attempts

Important note: Survey respondents are not required to provide any personal data, and are not asked for a name, email address or account. The platform does not store respondents' IP addresses with their responses.

It does record, per survey session, the browser user-agent string and the page the respondent arrived from, so that the Controller can see completion and traffic reports for its own survey. Depending on the circumstances this technical data may constitute personal data under the GDPR.

Whether the survey responses themselves constitute personal data depends entirely on the questions designed by the Controller.

5. Obligations of the Processor

5.1 Processing Instructions

The Processor shall process personal data only on documented instructions from the Controller, including with regard to transfers of personal data to a third country, unless required to do so by Union or Member State law.

5.2 Confidentiality

The Processor shall ensure that persons authorized to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.

5.3 Security Measures

The Processor implements the following technical and organizational measures:

- Encryption in transit (TLS/HTTPS for all connections)
- Encrypted database connections (PostgreSQL with TLS)
- Password hashing using PBKDF2 with SHA-256
- CSRF, XSS, SQL injection, and clickjacking protection (Django security framework)
- Access control: role-based permissions for survey management
- Registration anti-abuse defenses: honeypot field, per-IP rate limiting, and a CAPTCHA challenge, with an audit log of blocked attempts
- No advertising scripts, ad networks, or cross-site profiling. Personal data is never sold or shared for the purposes of any third party
- Regular security updates and dependency patching

5.4 Sub-processors

The Processor engages the following sub-processors:

Sub-processor	Purpose	Location	Data subjects
Render Services, Inc.	Cloud hosting, application servers, PostgreSQL database, uploaded media storage	Oregon, United States	Creators and respondents
Cloudflare, Inc.	CDN and reverse proxy in front of mapsurvey.org; bot-protection challenge on account registration	United States, global edge network	Creators and respondents
Mapbox, Inc.	Base map tiles and place search, requested directly by the respondent's browser	United States	Respondents
PostHog, Inc. (EU Cloud)	Product analytics on the Processor's own creator-facing pages (marketing, account, editor). Enforced never to load on survey pages or public results pages	European Union (Frankfurt)	Creators only
Google LLC (Gemini API)	Optional AI drafting of a new survey: the brief the Controller's user types is sent to the model to produce the draft. Never invoked unless a draft is requested, and survey responses are never sent. Paid tier — the content is not used to train Google's models	United States	Creators only
Namecheap, Inc. (Private Email)	Transactional email to creators — account activation and password reset	United States	Creators only

In addition, survey pages load interface assets (map tiles, mapping and interface JavaScript libraries, icon and web fonts) from public content delivery networks. Those providers receive the respondent's IP address and user-agent as an unavoidable consequence of serving the request, but receive no

survey content. A self-hosted deployment can serve these assets from the Controller's own infrastructure.

The Processor shall inform the Controller of any intended changes concerning the addition or replacement of sub-processors, giving the Controller the opportunity to object to such changes.

5.5 International Transfers

The hosted service runs in the United States (Render's Oregon region), and several sub-processors listed above are established in the United States. **Using the hosted service therefore involves transfers of personal data outside the European Economic Area.**

The Processor does not currently offer an EU-region deployment of the hosted service. Controllers subject to data-residency requirements that cannot accommodate such transfers should self-host Mapsurvey within their own jurisdiction; the platform is licensed under AGPLv3 and no functionality is withheld from the self-hosted build.

The Controller should review the data processing terms and transfer safeguards published by each sub-processor named in section 5.4 and satisfy itself that they meet its own requirements before processing personal data through the hosted service.

5.6 Data Subject Rights

The Processor shall assist the Controller in responding to requests from data subjects exercising their rights under GDPR (access, rectification, erasure, restriction, portability, objection), taking into account the nature of the processing.

5.7 Data Breach Notification

The Processor shall notify the Controller without undue delay after becoming aware of a personal data breach. The notification shall include:

- A description of the nature of the breach
- The categories and approximate number of data subjects concerned
- The likely consequences of the breach
- The measures taken or proposed to address the breach

5.8 Deletion and Return of Data

Upon termination of this agreement or upon request by the Controller, the Processor shall delete all personal data processed on behalf of the Controller, unless Union or Member State law requires storage of the personal data. The Controller may export all data at any time using the built-in export functionality.

Deletion within the product is performed in two stages: deleted surveys and responses are first removed from the Controller's account, then permanently purged by a scheduled job. Account deletion is carried out on request to the Processor at the address in section 1.

6. Obligations of the Controller

The Controller shall:

- Ensure a lawful basis exists for any personal data collected through surveys
- Inform respondents about data processing where required by applicable law, including the transfers described in section 5.5
- Design surveys in compliance with data minimization principles
- Not use the platform to collect special categories of personal data (Article 9 GDPR) without appropriate safeguards

7. Audits

The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in Article 28 GDPR. The Processor shall allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller. As Mapsurvey is open-source software, the Controller may audit the codebase at any time via the public GitHub repository.

8. Governing Law

This DPA shall be governed by the laws of the Federal Republic of Germany, without regard to its conflict of law provisions. The courts of Berlin, Germany shall have exclusive jurisdiction.

9. Signatures

Data Controller

Name, Title

Signature

Date

Data Processor

Artem Konuchov
Mapsurvey

Signature

Date